Court File No. T-2423-24

FEDERAL COURT

B E T W E E N:

THE CONSTRUCTION SPECIFICATIONS INSTITUTE, INC.

Plaintiff

- and -

BIBLIOTECH INC., JUSTE FANOU and TEMISAN FANOU, and JMF TECHNICAL DOCUMENTATION SOLUTIONS INC.

Defendants

FURTHER AMENDED FRESH AS AMENDED STATEMENT OF CLAIM

TO THE DEFENDANTS:

A LEGAL PROCEEDING HAS BEEN COMMENCED AGAINST YOU by the Plaintiff. The claim made against you is set out in the following pages.

IF YOU WISH TO DEFEND THIS PROCEEDING, you or a solicitor acting for you are required to prepare a statement of defence in Form 171B prescribed by the *Federal Courts Rules*, serve it on the plaintiff's solicitor or, if the plaintiff does not have a solicitor, serve it on the plaintiff, and file it, with proof of service, at a local office of this Court

WITHIN 30 DAYS after the day on which this statement of claim is served on you, if you are served in Canada or the United States; or

WITHIN 60 DAYS after the day on which this statement of claim is served on you, if you are served outside Canada and the United States.

TEN ADDITIONAL DAYS are provided for the filing and service of the statement of defence if you or a solicitor acting for you serves and files a notice of intention to respond in Form 204.1 prescribed by the *Federal Courts Rules*.

Copies of the *Federal Courts Rules*, information concerning the local offices of the Court and other necessary information may be obtained on request to the Administrator of this Court at Ottawa (telephone 613-992-4238) or at any local office.

IF YOU FAIL TO DEFEND THIS PROCEEDING, judgment may be given against you in your absence and without further notice to you.

Date: September 18, 2024
Amended: December 31, 2024
Further Amended: January 26, 2026
Further Amended: July 17, 2026

Issued by:_____

(Registry Officer)
Address of local office: 180 Queen Street West
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Toronto, ON, M5V 36L

TO: **SHIFT LAW PROFESSIONAL CORPORATION**
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Solicitors for the Defendants

CLAIM

1. The Plaintiff claims:

    a) a declaration that:

        (i) the Plaintiff, The Construction Specifications Institute, Inc., is the owner of, the MASTERFORMAT trademark registered in Canada under Trademark Registration No. TMA991107 for use in association with Class 16 “Manuals in the field of construction project management” (the “MASTERFORMAT Trademark”) and the Plaintiff has the exclusive right to the use of the MASTERFORMAT Trademark;

        (ii) the Plaintiff is the owner of, the UNIFORMAT trademark registered in Canada under Trademark Registration No. TMA1363809 for use in association with Class 16 “Manuals in the field of building lifecycle management” (the “UNIFORMAT Trademark”) and the Plaintiff has the exclusive right to the use of the UNIFORMAT Trademark;

        (iii) the Plaintiff has rights in the common-law trademark CSI (the “CSI Trademark”), the common-law trademark MASTERFORMAT, and the common-law trademark UNIFORMAT arising from the Plaintiff’s continuous use of each trademark in association with goods and services in construction and building development, including but not limited to printed periodicals and educational and certification services of building industry personnel in the fields of construction document technology, building product manufacturer representation and construction project contract interpretation and specification guidance and authoring;

        (iv) all of the Defendants, Bibliotech Inc., JMF Technical Documentation Solutions Inc., Juste Fanou and Temisan Fanou (the “MasterFormat Defendants”) have infringed the Plaintiff’s MASTERFORMAT

Trademark contrary to s.20 of the *Trademarks Act*, R.S.C., 1985, c. T-13 (the "*Trademarks Act*");

(v) the Defendants JMF Technical Documentation Solutions Inc., Juste Fanou and Temisan Fanou (the "UniFormat Defendants") have infringed the Plaintiff's UNIFORMAT Trademark contrary to s.20 of the *Trademarks Act;*

(vi) the MasterFormat Defendants have directed public attention to their goods and services in such a way as to cause, or be likely to cause, confusion in Canada, in association with the MASTERFORMAT Trademark between their goods and the goods of the Plaintiff, contrary to s.7(b) of the *Trademarks Act*;

(vii) the UniFormat Defendants have directed public attention to their goods and services in such a way as to cause, or be likely to cause, confusion in Canada, in association with the UNIFORMAT Trademark between their goods and the goods of the Plaintiff, contrary to s.7(b) of the *Trademarks Act*;

(viii) the MasterFormat Defendants have passed-off their goods and services in association with the MASTERFORMAT Trademark as and for the goods and services of the Plaintiff, contrary to s.7(c) of the *Trademarks Act;*

(ix) the UniFormat Defendants have passed-off their goods and services in association with the UNIFORMAT Trademark as and for the goods and services of the Plaintiff, contrary to s.7(c) of the *Trademarks Act;*

(x) the MasterFormat Defendants have used the MASTERFORMAT Trademark in a manner that is likely to have the effect of depreciating the value of the goodwill attaching thereto, contrary to s.22(1) of the *Trademarks Act*;

(xi) the UniFormat Defendants have used the UNIFORMAT Trademark in a manner that is likely to have the effect of depreciating the value of the goodwill attaching thereto, contrary to s.22(1) of the *Trademarks Act*;

(xii) copyright subsists in the MasterFormat standards (the "MasterFormat Work"), as further described herein and are protected by Canadian Copyright Registration No. 1213241 and US Copyright Registration No. TX0009377235;

(xiii) copyright subsists in the UniFormat standards (the "UniFormat Work") as further described herein and are protected by Canadian Copyright Registration No. 1237148 and US Copyright Registration No. TX0009380094;

(xiv) the Defendants have infringed the Plaintiff's copyright in the MasterFormat Work contrary to the *Copyright Act*, R.S.C., 1985, c. C-42, as amended (the "*Copyright Act*"); and

(xv) the UniFormat Defendants have infringed the Plaintiff's copyright in the UniFormat Work contrary to the *Copyright Act*.

b) an interim, interlocutory and permanent injunction restraining the MasterFormat Defendants, along with any parent, affiliate, subsidiary and all other related companies and businesses, and their respective and collective agents, employees, officers, directors, partners, consultants, licensees, franchises, successors, assigns, and all others over whom they act in concert, exercise control and direction from, directly or indirectly:

(i) adopting, using, selling, distributing, promoting or advertising the MASTERFORMAT Trademark, the CSI Trademark, or any other trademark, trade name, trade dress, trading style, corporate name, metatag (or other Internet search engine optimization tool or device) or domain name, that is related or confusingly similar to the

MASTERFORMAT Trademark or the CSI Trademark in association with manuals in the field of construction project management, including any manuals related to construction;

(ii) passing-off the MasterFormat Defendants' goods and services as and for the goods and services of the Plaintiff, by way of using the MASTERFORMAT Trademark, the CSI Trademark, or any trademark that is confusing or likely to be confused with the MASTERFORMAT Trademark or the CSI Trademark by promoting, advertising or otherwise so associating such marks with any goods and services sold by the MasterFormat Defendants such that notice of the association is given to the purchaser or potential purchaser;

(iii) directing public attention to the MasterFormat Defendants' goods and services in such a way as to cause, or be likely to cause, confusion in Canada between the MasterFormat Defendants' goods and services and those of the Plaintiff;

(iv) using the MASTERFORMAT Trademark in such a manner that is likely to have the effect of depreciating the value of the goodwill attaching thereto;

(v) practicing, without the Plaintiff's authorization or grant of license, the Plaintiff's copyrights in the MasterFormat Work, including using, producing or reproducing, or causing or authorizing others to use, produce or reproduce, and distributing all or a substantial part of the MasterFormat Work in any material form, and, without limiting the generality of the foregoing, creating derivative works from the MasterFormat Work;

(vi) selling, distributing, exposing for sale, offering for sale, possessing for the purposes of the foregoing or importing infringing copies of the MasterFormat Work or other related materials associated therewith;

authorizing, directing, ordering, assisting, aiding or abetting others to do any of the foregoing; and

(vii) infringing in any manner whatsoever the copyright in any other works in respect of which the Plaintiff owns copyright, including but not limited to works which come into existence after the commencement of this proceeding;

c) an interim, interlocutory and permanent injunction restraining the UniFormat Defendants, along with any parent, affiliate, subsidiary and all other related companies and businesses, and their respective and collective agents, employees, officers, directors, partners, consultants, licensees, franchises, successors, assigns, and all others over whom they act in concert, exercise control and direction from, directly or indirectly:

(i) adopting, using, selling, distributing, promoting or advertising the UNIFORMAT Trademark, or any other trademark, trade name, trade dress, trading style, corporate name, metatag (or other Internet search engine optimization tool or device) or domain name, that is related or confusingly similar to the UNIFORMAT Trademark in association with manuals in the field of construction project management, including any manuals related to construction;

(ii) passing-off the UniFormat Defendants' goods and services as and for the goods and services of the Plaintiff, by way of using the UNIFORMAT Trademark or any trademark that is confusing or likely to be confused with the UNIFORMAT Trademark by promoting, advertising or otherwise so associating such marks with any goods and services sold by the UniFormat Defendants such that notice of the association is given to the purchaser or potential purchaser;

(iii) directing public attention to the UniFormat Defendants' goods and services in such a way as to cause, or be likely to cause, confusion in

Canada between the UniFormat Defendants' goods and services and those of the Plaintiff;

(iv) using the UNIFORMAT Trademark in such a manner that is likely to have the effect of depreciating the value of the goodwill attaching thereto;

(v) practicing, without the Plaintiff's authorization or grant of license, the Plaintiff's copyrights in the UniFormat Work, including using, producing or reproducing, or causing or authorizing others to use, produce or reproduce, and distributing all or a substantial part of the UniFormat Work in any material form, and, without limiting the generality of the foregoing, creating derivative works from the UniFormat Work;

(vi) selling, distributing, exposing for sale, offering for sale, possessing for the purposes of the foregoing or importing infringing copies of the UniFormat Work or other related materials associated therewith; authorizing, directing, ordering, assisting, aiding or abetting others to do any of the foregoing; and

(vii) infringing in any manner whatsoever the copyright in any other works in respect of which the Plaintiff owns copyright, including but not limited to works which come into existence after the commencement of this proceeding;

d) a permanent order requiring the MasterFormat Defendants to deliver-up under oath or supervision of this Honourable Court, within five days of the issuance of the judgment, all products, advertising materials, promotions, screens, negatives, printed or electronic material, website materials, all infringing copies of the MasterFormat Work and UniFormat Work and other things in their possession, custody or control, the sale, use reproduction, distribution, exhibition or possession of which would offend any injunction or order

granted herein, or in the alternative, an order that such material be destroyed under oath or under supervision of this Honourable Court within the same five day period;

e) an order requiring each Defendant to disclose to the Plaintiff the following information about the Defendants' goods and services, in any format, that bear the Plaintiff's MASTERFORMAT Trademark, the UNIFORMAT Trademark or the CSI Trademark, or any combination of these, or that contain elements of or derived from the MasterFormat Work or UniFormat Work, or both (the "Infringing Goods") including:

    i) the name and address of each customer to whom the MasterFormat Defendants have sold or distributed the Infringing Goods including copies of all invoices and records reflecting such purchases; and

    ii) the names and address of each person about whom the MasterFormat Defendants have knowledge who are engaged in or who assist in the manufacturing, supplying and distribution of the Infringing Goods;

f) an order that the Plaintiff may, at its sole discretion, take all reasonable actions to remove, or cause to be removed, the Infringing Goods and any of the MasterFormat Defendants' uses of the MASTERFORMAT Trademark, the UNIFORMAT Trademark, the CSI Trademark, the MasterFormat Work or the UniFormat Work from the Internet;

g) an order that the Plaintiff may, at its sole discretion, take all reasonable actions to remove any and all additional webpages that reference or hyperlink to the Infringing Goods and any and all of the MasterFormat Defendants' uses of the MASTERFORMAT Trademark, the UNIFORMAT Trademark, the CSI Trademark, the MasterFormat Work or the UniFormat Work, including requesting the removal from the Internet search engines Google, Yahoo! and Bing, of all such webpages;

h) an order that any company or entity that provides internet services, server, web hosting or electronic storage or both services to any of the MasterFormat Defendants or other related entity, or any of their respective officers, servants, agents or other affiliated entities, take all reasonable actions necessary to transfer to remove any content on those services that is contrary to any injunction or order of this court regarding the Infringing Goods and any of the MasterFormat Defendants' uses of the MASTERFORMAT Trademark, the UNIFORMAT Trademark, the CSI Trademark, the MasterFormat Work or the UniFormat Work within 20 days of being notified of an order of this court;

i) an order that the Plaintiff may, at its sole discretion, request that third-party website hosts, Internet Service Providers and Internet search engines preserve any and all digital evidence, which is in their power, possession or control, and that is relevant to the Infringing Goods and any of the MasterFormat Defendants' uses of the MASTERFORMAT Trademark, the UNIFORMAT Trademark, the CSI Trademark, the MasterFormat Work or the UniFormat Work, until the resolution of this Federal Court action;

j) an order for damages including:

    i. for trademark infringement, passing-off and depreciation of goodwill or in the alternative, an accounting of all income and profits made and received by the MasterFormat Defendants arising from and in connection with the Infringing Goods and any of the MasterFormat Defendants' uses of the MASTERFORMAT Mark, the CSI Mark or the MasterFormat Work, or all or any combination of these, as elected by the Plaintiff;

    ii. for the MasterFormat Defendants' unauthorized practice of the Plaintiff's copyrights in the MasterFormat Work and copyright infringement, and in addition to those damages, such part of the profits that the MasterFormat Defendants have made from their infringement

that were not taken into account in calculating the damages as this Court considers just, pursuant to s.35(1) of the *Copyright Act*;

iii. for trademark infringement, passing-off and depreciation of goodwill or in the alternative, an accounting of all income and profits made and received by the UniFormat Defendants arising from and in connection with the Infringing Goods and any of the UniFormat Defendants' uses of the UNIFORMAT Mark or the UniFormat Work, or all or any combination of these, as elected by the Plaintiff;

iv. for the UniFormat Defendants' unauthorized practice of the Plaintiff's copyrights in the UniFormat Work and copyright infringement, and in addition to those damages, such part of the profits that the UniFormat Defendants have made from their infringement that were not taken into account in calculating the damages as this Court considers just, pursuant to s.35(1) of the *Copyright Act*;

k) punitive and exemplary damages as against each of the Defendants;

l) in the alternative to the damages for copyright infringement set out in paragraph (j) above, at the Plaintiff's election at any time before final judgment is rendered, statutory damages pursuant to s.38.1 of the *Copyright Act*;

m) pre-judgment and post-judgment interest in accordance with s. 37(2) of the *Federal Courts Act*, R.S.C. 1985, C. F-7, as amended;

n) costs of this action on the highest scale, together with any applicable taxes; and

o) such further and other relief as the Plaintiff may seek and this Honourable Court may deem just.

THE PARTIES

2. The Plaintiff is a company incorporated on March 19, 1948 under the laws of the State of Maryland, with its principal headquarters at 123 N. Pitt St., Suite 450, Alexandria, VA, 22314, United States of America.

3. The corporate Defendant, Bibliotech Inc. ("Bibliotech") is a corporation incorporated on December 29, 2020 under the laws of the Province of Ontario, with a registered address at 347 Jane St., Toronto, Ontario, M6S 3Z3, Canada.

4. The corporate Defendant, JMF Technical Documentation Solutions Inc. ("JMF") is a corporation that was incorporated on March 1, 2017 under the laws of Ontario, with a registered address at 347 Jane St., Toronto, Ontario, M6S 3Z3, Canada.

5. The Defendant Juste Fanou ("~~Fanou~~ Juste") is an individual and director, owner and operator of Bibliotech, residing in Toronto, Ontario.

6. The Defendant Temisan Fanou ("Temisan") is an individual and director of Bibliotech, residing in Toronto, Ontario.

THE BUSINESS OF THE PLAINTIFF

7. The Plaintiff was established in 1948 and is a national not-for-profit association of more than 6,000 members dedicated to improving the communication of construction information throughout continuous development and transformation of standards and formats. The Plaintiff also provides education and certification of professionals to improve project delivery processes. The Plaintiff's members work tirelessly to effectively communicate the designers' vision, the material producers' solutions and the constructors' techniques to create outstanding facilities that meet facility owners' objectives.

8. One of the Plaintiff's most popular and well-known standard is the MasterFormat Work, first released in 1979 and updated continuously by the Plaintiff since that time. The MasterFormat Work is a creative and original specifications-writing standard used by construction and commercial building design projects in North America, including in Canada.

9. The MasterFormat Work is a creative indexing system, used by architects, engineers and builders under license by CSI, to organize construction data under specific title divisions, such as electrical, mechanical, procurement and contracting requirements, HVAC and thermal protection.

10. The uniquely creative and original indexing system or taxonomy of six-digit codes in the MasterFormat Work, which are the main codes corresponding to categories are within multiple levels that pertain to the various aspects of a construction project along with the relationships between them. The codes in the MasterFormat Work are unique and creative and are not a result of the application or description of the Work.

11. Each specific building component is creatively identified in the MasterFormat Work by a uniquely determined standardized six-digit number that can be expanded to eight-digits when greater detail is required. The number of digits selected whether 6, 8, pairs of numbers or another number is a result of the ingenuity and skill and judgment of the authors and not a property or characteristic of the building components and could have been any combination of different digits. The creative six-digit number is identified in the MasterFormat Work as a series of paired numbers as follows:

- First Pair (Level 1) identifies the Broad Specificity, such as Division 07 for Thermal and Moisture Control.
- Second Pair (Level 2) defines the Mid-Level Specificity, like Section 07 51 00 for Built-Up Bituminous Roofing.
- Third Pair (Level 3) offers Precise Specificity by identification of materials forming a part of the work result, as in Sub-section 07 51 13 for Build-Up Asphalt Roofing.
- In some cases, a Fourth Pair (Level 4) is added to give a more uniform and standardized definition of the subject matter or specific application method associated with the work result, such as Sub-Sub-Section 07 51 13.13 Cold Applied Built-Up Asphalt Roofing.
- Users of the Work can also define a Fifth Sequence (Level 5) of numbers or letters, or numbers and letters to customize their filing system or assign

specific manufacturer or system characteristics, such as Sub-Sub-Sub-Section 07 51 13.13.ABC1 for ABC Brand, System 1 Cold Applied Built-Up Asphalt Roofing.

12. Other construction project indexing systems do not use these creative elements, instead using distinguishable and original numbers of digits, hierarchies, expressions of text, expressions of categories or orders of categories. The MasterFormat Work is original and originates from its authors' skills and judgment for the Work as a whole and for the indexing system of the MasterFormat Work. Each novel number selection and categories in Level 1, 2 and 3 listed above, together and separately as applied to a construction project, is unique, original and originates from its authors' skill, experience and judgment. For example, the MasterFormat Work's authors assigned 07 (Level 1) for Thermal and Moisture Control (and 48 other two-digit codes to items in Level 1). MasterFormat is unique from other indexing systems that are used to describe the same construction materials in various ways.

13. A copy of the MasterFormat Work is at **Schedule "A"**.

14. The Plaintiff has used the MASTERFORMAT Trademark continuously with the MasterFormat Work in Canada since at least as early as 1979. As a result of the Plaintiff's efforts and promotion, the MASTERFORMAT Trademark has gained substantial goodwill and fame, and is associated by consumers exclusively with the MasterFormat Work and with the Plaintiff.

15. The Plaintiff also publishes the well-known standard the UniFormat Work, first released in 1992 and updated continuously by the Plaintiff since that time. The UniFormat Work is an arrangement of construction information based on physical parts of a facility that is used for most of today's construction and commercial building design projects in North America, including in Canada, for organizing detailed cost elements and analyses, descriptive specifications and more detailed information about design choices.

16. The MasterFormat Work can be used together with, and compliment, the UniFormat Work for organizing and titling elements in construction projects.

17. The UniFormat Work is comprised of a creative hierarchy of major categories of construction information that is separated by their special functions and that include the following nine categories of special functions:"

- A Substructure
- B Shell
- C Interiors
- D Services
- E Equipment and Furnishings
- F Special Construction and Demolition
- G Building Sitework
- Z General

18. Each major category is creatively divided into a unique subset of categories, each containing a unique specification code consisting of a letter and four numbers.

19. A user benefits from the four Levels of the UniFormat Work. First, the user selects the Level 1 category, which are divided into classes of information by the discrete concepts that compose them. Next, the user selects the Level 2 class, which carries the alphanumeric letter of their parent category, plus a two-digit number. If needed, the user can select a Level 3 and 4 category, each developed by further subdividing Level 2 classes. Each of those selections will contain the alphanumeric designation of their parent category and class, plus a two-digit number per Level, with the two-digit Level 4 numbers being set off by a decimal point as shown in the example below. The user also has the flexibility of assigning alphanumeric designations for Level 4 that are unassigned within a group of Level 3 subclasses.

20. Other construction project indexing systems do not use these creative elements, instead using distinguishable numbers of digits, hierarchies, expressions of text, expressions of categories or orders of categories. The UniFormat Work is original and originates from its authors' skills and judgment for the Work as a whole and for the indexing system of the Work.

21. A copy of the UniFormat Work is at **Schedule "B"**.

22. The Plaintiff has used the UNIFORMAT Trademark continuously with the UniFormat Work in Canada since at least as early as 1992. As a result of the Plaintiff's efforts and promotion, the UNIFORMAT Trademark has gained substantial goodwill and fame, and is associated by consumers exclusively with the UniFormat Work and with the Plaintiff.

THE PLAINTIFF'S TRADEMARKS

23. The Plaintiff is the owner of the following Canadian trademark registrations:

Trademark	**Registration No.**	**Goods**
MASTERFORMAT	TMA991107	Class 16: Manuals in the field of construction project management
UNIFORMAT	TMA1363809	Class 16: Manuals in the field of building lifecycle management

24. The Plaintiff has used the MASTERFORMAT Trademark in Canada since at least as early as 1978. By virtue of the trademark registration, the Plaintiff has the exclusive right to the use of the MASTERFORMAT Trademark in Canada.

25. The Plaintiff has used the UNIFORMAT in Canada since at least as early as 1992. By virtue of the trademark registrations, the Plaintiff has the exclusive right to the use of the UNIFORMAT trademark in Canada.

26. The Plaintiff is also the owner of, among others, the common law trademark, CSI (the "CSI Trademark"). The Plaintiff has used the CSI Trademark in Canada continuously since at least 1979 in association with construction industry goods and services. The Plaintiff has the exclusive right to the CSI Trademark in Canada.

27. The Plaintiff, in the regular course of its operations as an association, promotes and sells goods and services under the CSI Trademark, the MASTERFORMAT Trademark, the UNIFORMAT Trademark and other CSI trademarks, service marks and certification marks.

28. The Plaintiff, and its authorized agents or licensees, have extensively used the CSI Trademark, the MASTERFORMAT Trademark and the UNIFORMAT Trademark since at least as early as 1979 and 1992 respectively, in Canada.

29. Materials and services bearing the CSI Trademark, the MASTERFORMAT Trademark and the UNIFORMAT Trademark are sold exclusively by the Plaintiff or the Plaintiff's authorized licensees in Canada.

30. The CSI Trademark, MASTERFORMAT Trademark, and the UNIFORMAT Trademark are well-known and recognized in Canada and throughout the world as identifying the goods and services as that of the Plaintiff. Further, the CSI Trademark, the MASTERFORMAT Trademark the UNIFORMAT Trademark, distinguishes the goods and services of the Plaintiff from the goods and services of others. The Plaintiff has developed, and is the owner of, valuable and substantial reputation and goodwill in association with the CSI Trademark, the MASTERFORMAT Trademark and the UNIFORMAT Trademark in Canada and throughout the world.

31. The Plaintiff is therefore the exclusive owner of the CSI Trademark, the MASTERFORMAT Trademark and the UNIFORMAT Trademark, in Canada pursuant to the *Trademarks Act* and the common-law and has the right to preclude others from using the MASTERFORMAT Trademark, the CSI Trademark and the UNIFORMAT Trademark, or any other confusingly similar trademarks.

32. At all times, the Defendants knew that the Plaintiff had developed a significant reputation and goodwill in Canada in association with the CSI Trademark, the MASTERFORMAT Trademark and the UNIFORMAT Trademark. The MasterFormat Defendants' infringing activities, as described below, were intentionally done in an effort to trade on, usurp and appropriate for its own benefit the reputation and goodwill earned and owned by the Plaintiff and to create confusion as between its goods and the goods and services of the Plaintiff.

COPYRIGHT IN THE MASTERFORMAT WORK AND THE UNIFORMAT WORK

33. The MasterFormat Work is an original, creative literary work first created for the Plaintiff by a panel of contracted, specialist volunteers in 1978, and updated by the Plaintiff's

MasterFormat Maintenance Task Team periodically since that time. The authors of each iteration of the MasterFormat Work were employees of or volunteers under contract with the Plaintiff at the time of creating each iteration of the MasterFormat Work in which copyright subsists, in accordance with ss.2 and 5 of the *Copyright Act*. The MasterFormat Work is original and originates from its authors' skills and judgment for the work as a whole and for the indexing system which is also commonly referred to as a taxonomy. Further, at the time of the original iteration of the MasterFormat Work, the authors were citizens of, ordinarily residents in the United States of America. Authors of subsequent iterations of the MasterFormat Work have been citizens of the United States of America and Canada. The Work is attached as **Schedule "A"**.

34. The copyright in the MasterFormat Work is registered with the United States Copyright Office under registration number TX0009377235 (Reg. Date April 2, 2024). A copy of the MasterFormat Work is deposited with the United States Copyright Office. As a result, the Plaintiff is the owner of the copyright in the MasterFormat Work. A copy of the registration is attached as **Schedule "C".**

35. The UniFormat Work is an original, creative literary work first created for the Plaintiff by a panel of contracted, specialist volunteers in 1992, and updated by the Plaintiff's UniFormat Maintenance Task Team periodically since that time. The authors of each iteration of the UniFormat Work were employees of or volunteers under contract with the Plaintiff at the time of creating each iteration of the UniFormat Work in which copyright subsists, in accordance with ss.2 and 5 of the *Copyright Act*. The UniFormat Work is original and originates from its authors' skills and judgment for the work as a whole and for the indexing system which is also commonly referred to as a taxonomy. Further, at the time of the original iteration of the UniFormat Work, the authors were citizens of, ordinarily residents in the United States of America. Authors of subsequent iterations of the UniFormat Work have been citizens of the United States of America and Canada. The UniFormat Work is attached as **Schedule "B"**.

36. The copyright in the UniFormat Work is registered with the United States Copyright Office under registration number TX0009380094 (Reg. Date April 2, 2024). A copy of the UniFormat Work is deposited with the United States Copyright Office. As a result, the Plaintiff

is the owner of the copyright in the UniFormat Work. A copy of the UniFormat Work copyright registration is attached as **Schedule "D"**.

37. The United States of America is a signatory country to the Berne Convention for the Protection of Literary and Artistic Work. By virtue of s.5(1)(a) of the *Copyright Act*, Canada extends copyright protection to the works of authors ordinarily resident in the United States of America.

38. The copyright in the MasterFormat Work is also registered with the Canadian Intellectual Property Office under Registration No. 1213241 (Reg. Date May 17, 2024). A material term of the contracts with the authors assigns the authors' copyright to the MasterFormat Work to CSI. A copy of the registration is attached as **Schedule "E".** The authors listed on the Canadian Copyright Registration are below.

Author	Employee/Volunteer
Joseph Berchenko	Volunteer
Chip Bullock	Volunteer
Kenneth E. Chappell	Volunteer
David Metzger	Volunteer
Kevin M. O'Beirne	Volunteer
Keith A. Robinson	Volunteer
Jason Urquhart	Volunteer
David Watson	Volunteer
Greg Ceton	Volunteer

39. The copyright in the UniFormat Work is also registered with the Canadian Intellectual Property Office under Registration No. 1237148 (Reg. Date September 16, 2025). A material term of the contracts with the authors assigns the authors' copyright to the UniFormat Work to CSI. A copy of the registration is attached as **Schedule "F"**. The authors listed on the Canadian Copyright Registration are below.

Author	Employee/Volunteer
Joan Raff	Volunteer
David Dexter	Volunteer
Richard Stone	Volunteer
Grant Owen	Volunteer
James Yarmus	Volunteer
John Groff	Volunteer
Ellen Crews	Volunteer
Chris Robuck	Volunteer
Robert Johnson	Volunteer
Steve Kadivar	Volunteer
Phillip Kabza	Volunteer
Glen Barin	Volunteer
Richard Romeo	Volunteer
Paul Bertram, Jr.	Volunteer
Andrew Wilson	Volunteer
Mark Fascher	Volunteer

40. The Plaintiff pleads and relies upon the statutory presumptions of the *Copyright Act*, including Sections 34 (1) and (2).

41. Together, the CSI Trademark, the MASTERFORMAT Trademark, the UNIFORMAT Trademark, the MasterFormat Work and the UniFormat Work are collectively referred to as the "Plaintiff's Intellectual Properties".

THE DEFENDANTS' INFRINGING ACTIVITIES

Trademark Infringement

a) The MASTERFORMAT Trademark

42. The Plaintiff became aware that the MasterFormat Defendants, without license, permission or authorization from the Plaintiff, have produced, printed, imported, offered or displayed for sale, distributed, sold, stored or shopped, or have otherwise dealt in the Infringing Goods or have caused others to manufacture, produce, print, offer or display for sale, distribute, sell, store, ship, or otherwise deal in the Infringing Goods, contrary to s.20 of the *Trademarks Act*.

43. The MasterFormat Defendants are not licensees, permittees or authorized retailers of any CSI's goods or services. Without such license, permission or authorization, the MasterFormat Defendants used the MASTERFORMAT Trademark and the CSI Trademark. By virtue of their actions and conduct, the Defendants have infringed, and are deemed to have infringed, the MASTERFORMAT Trademark.

b) The UNIFORMAT Trademark

44. The Plaintiff became aware that the UniFormat Defendants, without license, permission or authorization from the Plaintiff, have produced, printed, imported, offered or displayed for sale, distributed, sold, stored or shopped, or have otherwise dealt in the Infringing Goods or have caused others to manufacture, produce, print, offer or display for sale, distribute, sell, store, ship, or otherwise deal in the Infringing Goods, contrary to s.20 of the *Trademarks Act*, through its website https://www.jmfservices.net/.

45. The UniFormat Defendants are not licensees, permittees or authorized retailers of any CSI's goods or services. Without such license, permission or authorization, UniFormat Defendants used the UNIFORMAT Trademark. By virtue of their actions and conduct, the UniFormat Defendants, have infringed, and are deemed to have infringed the UNIFORMAT Trademark.

Statutory Passing-Off Passing of the CSI and MASTERFORMAT Trademarks

46. As described above, the Plaintiff has used the CSI Trademark and the MASTERFORMAT Trademark in Canada continuously for at least 45 years, since at least as early as 1979 in association with construction industry goods and services.

47. The MasterFormat Defendants have directed public attention to their Infringing Goods, services and business in such a way as to cause or be likely to cause confusion in Canada, contrary to s.7(b) of the *Trademarks Act*.

48. The value of the goodwill attaching to the CSI Trademark and the MASTERFORMAT Trademark depends, in part, on the distinctiveness of those trademarks and the advantage that the Plaintiff enjoys from consumers associating the CSI Trademark and the MASTERFORMAT Trademark with the Plaintiff's quality goods and services. To ensure this positive association, Plaintiff strictly controls, through brand standards and quality controls, how and on what goods and services the CSI Trademark and the MASTERFORMAT trademark are used. The MasterFormat Defendants' unauthorized use of the CSI Trademark and the MASTERFORMAT Trademark, without Plaintiff's quality controls, dilutes the distinctiveness of the CSI Trademark and the MASTERFORMAT Trademark and reduces the value and goodwill in the CSI Trademark and the MASTERFORMAT Trademark.

49. By virtue of the MasterFormat Defendants' unauthorized and unlicensed use of the Plaintiff's Intellectual Properties, consumers will be, or will likely to be, confused as to the source of the Defendants' goods and services. Consumers are also likely to infer, mistakenly, that the MasterFormat Defendants' goods and services originate from the Plaintiff, are associated with the Plaintiff or are endorsed by the Plaintiff.

50. The Infringing Goods are materials and forms including in electronic form produced by the MasterFormat Defendants on its website and the Bibliotech's Manufacturer Library and Knowledge Base, using the CSI Trademark and the MASTERFORMAT Trademark without authorization or license. The CSI Trademark and the MASTERFORMAT Trademark have been and are damaged and depreciated through the MasterFormat Defendants' unauthorized use of each, as the Plaintiff has no control over the character or quality of the goods offered by the

MasterFormat Defendants. Furthermore, the Infringing Goods reduce the distinctiveness of the CSI Trademark and the MASTERFORMAT Trademark.

51. Through each and every one of the aforementioned activities, and other activities known to the MasterFormat Defendants, the MasterFormat Defendants have thereby caused actual damage or potential damage to the Plaintiff and profited from their unlawful acts.

Statutory Passing-Off Passing of the UNIFORMAT Trademark

52. The Plaintiff has used the UNIFORMAT Trademark in Canada continuously for over 30 years, since at least as early as 1992 in association with construction industry goods and services.

53. The UniFormat Defendants have directed public attention to their Infringing Goods, services and business in such a way as to cause or be likely to cause confusion in Canada, contrary to s.7(b) of the *Trademarks Act*.

54. The value of the goodwill attaching to the UNIFORMAT Trademark depends, in part, on the distinctiveness of those trademarks and the advantage that the Plaintiff enjoys from consumers associating the UNIFORMAT Trademark with the Plaintiff's quality goods and services. To ensure this positive association, Plaintiff strictly controls, through brand standards and quality controls, how and on what goods and services the UNIFORMAT Trademark is used. The UniFormat Defendants' unauthorized use of the UNIFORMAT Trademark without Plaintiff's quality controls, dilutes the distinctiveness of the UNIFORMAT Trademark and reduces the value and goodwill in the UNIFORMAT Trademark.

55. By virtue of the UniFormat Defendants' unauthorized and unlicensed use of the Plaintiff's Intellectual Properties, consumers will be, or will likely to be, confused as to the source of the UniFormat Defendants' goods and services. Consumers are also likely to infer, mistakenly, that the UniFormat Defendants' goods and services originate from the Plaintiff, are associated with the Plaintiff or are endorsed by the Plaintiff.

56. The Infringing Goods are materials and forms including in electronic form produced by the Defendant JMF's website https://www.jmfservices.net, using the CSI Trademark, the UNIFORMAT Trademark and the MASTERFORMAT Trademark without authorization or

license. The UNIFORMAT Trademark are damaged and depreciated through the UniFormat Defendants' unauthorized use of each, as the Plaintiff has no control over the character or quality of the goods offered by the UniFormat Defendants. Furthermore, the Infringing Goods reduce the distinctiveness of the UNIFORMAT Trademark.

57. Through each and every one of the aforementioned activities, and other activities known to the UniFormat Defendants, the UniFormat Defendants have thereby caused actual damage or potential damage to the Plaintiff and profited from their unlawful acts.

Statutory Passing - off of Goods and Services pursuant to 7(c) of the Trademarks Act

58. The Plaintiff has, through promotions and improvements, established significant consumer goodwill in the MasterFormat Work and the UniFormat Work. The MasterFormat Work and the UniFormat Work are well-known and recognized in Canada and throughout the world as created, owned and maintained by the Plaintiff. The Plaintiff has developed, and is the owner of, valuable and substantial reputation and goodwill in association with the MasterFormat Work and the UniFormat Work in Canada and throughout the world. The MasterFormat Work and the UniFormat Work which is used in association with the MASTERFORMAT Trademark and the UNIFORMAT Trademark that are known in the construction and building design market by its distinctive classification systems. The value of a CSI license depends on the ability of CSI to ensure that only the current, best form of the Plaintiff's Intellectual Properties is being used. The unauthorized and unlicensed used of the MasterFormat Work and the UniFormat Work by the MasterFormat Defendants and the UniFormat Defendants may result in errors on construction plans, disputes and other safety concerns due to the Work being out of date and unregulated by the Plaintiff.

59. Pursuant to subsection 7(c) of the *Trademarks Act*, it is considered passing off for any person to pass off other goods or services as and for those ordered and requested.

60. The MasterFormat Defendants and the UniFormat Defendants have passed-off the Infringing Goods for those of the Plaintiff by supplying unregulated goods and services in place of the actual goods and services of the Plaintiff and misrepresenting to consumers that these are the actual goods and services of the Plaintiff, contrary to section 7(c) of the *Trademarks Act*.

61. The Infringing Goods offered by the MasterFormat Defendants and the UniFormat Defendants are unregulated by CSI, and are out-of-date, inaccurately modified, and suggest an application of the Work outside of its intended use.

62. The MasterFormat Defendants and the UniFormat Defendants' reproduction of the MasterFormat Work and the UniFormat Work in the Infringing Goods causes irreparable harm to the Plaintiff by lowering the value of the Plaintiff's Intellectual Properties to consumers, unfairly capitalizing on CSI's goodwill leading to consumer confusion as to the source of the goods and services.

63. The MasterFormat Defendants and the UniFormat Defendants reproduction of the MasterFormat Work and the UniFormat Work causes safety issues for users and the public, as out of date or modified versions of the Work could produce inconsistent results when used in construction projects.

64. Through each and every one of the aforementioned activities, and activities know to the MasterFormat Defendants and the UniFormat Defendants, the MasterFormat Defendants and the UniFormat Defendants have thereby caused damage to the Plaintiff and profited from the unlawful acts.

Depreciation of Goodwill of the Plaintiff's Registered Trademarks

a) The MASTERFORMAT Trademark

65. The MASTERFORMAT Trademark has been, and continues to be, used by the MasterFormat Defendants in connection with Bibliotech's Manufacturer Library and Knowledge Base as well as on the MasterFormat Defendants' website. As outlined above, the MASTERFORMAT Trademark has significant goodwill attached to it in Canada.

66. The creation of an association between the MASTERFORMAT Trademark and the Infringing Goods is inconsistent with the reputation of the MASTERFORMAT Trademark, and this association is likely to tarnish the goodwill associated the MASTERFORMAT Trademark.

67. The MasterFormat Defendants have unfairly exploited the valuable reputation of the Plaintiff by using the MASTERFORMAT Trademark. The MasterFormat Defendants'

unauthorized and unlicensed use of the MASTERFORMAT Trademark, as described herein, has caused, and will continue to cause, confusion in consumers, unfairly linking the Infringing Goods with the Plaintiff, the Plaintiff's goods and services, and the goodwill in the MASTERFORMAT Trademark.

68. The aforesaid illegal activities of the MasterFormat Defendants greatly depreciate the value of goodwill attached to the MASTERFORMAT Trademark, contrary to Section 22(1) of the *Trademarks Act*. The MasterFormat Defendants' activities cause serious irreparable harm to the Plaintiff and to the valuable reputation of the MASTERFORMAT Trademark.

b) The UNIFORMAT Trademark

69. The UNIFORMAT Trademark has been, and continues to be, used by the UniFormat Defendants in connection with Bibliotech's Manufacturer Library and Knowledge Base as well as on the Defendant JMF's website. As outlined above, the UNIFORMAT Trademark has significant goodwill attached to it in Canada.

70. The creation of an association between the UNIFORMAT Trademark and the Infringing Goods is inconsistent with the reputation of the UNIFORMAT Trademark, and this association is likely to tarnish the goodwill associated the UNIFORMAT Trademark.

71. The UniFormat Defendants have unfairly exploited the valuable reputation of the Plaintiff by using the UNIFORMAT Trademark. The UniFormat Defendants' unauthorized and unlicensed use of the UNIFORMAT Trademark, as described herein, has caused, and will continue to cause, confusion in consumers, unfairly linking the Infringing Goods with the Plaintiff, the Plaintiff's goods and services, and the goodwill in the UNIFORMAT Trademark.

72. The aforesaid illegal activities of the UniFormat Defendants greatly depreciate the value of goodwill attached to the UNIFORMAT Trademark, contrary to Section 22(1) of the *Trademarks Act*. The UniFormat Defendants' activities cause serious irreparable harm to the Plaintiff and to the valuable reputation of the UNIFORMAT Trademark.

Copyright Infringement of the MasterFormat Work and the UniFormat Work

73. The Plaintiff pleads and relies upon the statutory presumptions of the *Copyright Act*, including Section 34.1.

74. Section 3 of the *Copyright Act* sets out the rights of the owner of copyright in an original work, including the sole right to produce or reproduce the work or any substantial part thereof in any material form whatever.

75. Pursuant to s.27(1) of the *Copyright Act*, it is an infringement of copyright for any person to do, without the consent of the owner of the copyright, anything that by that by the *Copyright Act*, only the owner of the copyright has the right to do.

76. Pursuant to subsections 27(2)(a), (b), (c), (d) and (e) of the *Copyright Act*, it is an infringement of copyright for any person to engage in prohibited acts of "secondary infringement" in respect of a copy of a work that the person knows or should have known infringes copyright or would infringe copyright if it had been made in Canada by the person who made it. Such acts of secondary infringement include:

> (a) sell or rent out,
> (b) distribute to such an extent as to affect prejudicially the owner of the copyright,
> (c) by way of trade distribute, expose or offer for sale or rental, or exhibit in public,
> (d) possess for the purpose of doing anything referred to in paragraphs (a) to (c), or
> (e) import into Canada for the purpose of doing anything referred to in paragraphs (a) to (c).

a) The MasterFormat Work

77. The MasterFormat Defendants have infringed the Plaintiff's copyright in the MasterFormat Work, by using, copying, producing, reproducing, creating a derivative work from, and distributing the MasterFormat Work. The Infringing Goods are a reproduction of or a derivative work based on the MasterFormat Work or a substantial part of the original MasterFormat Work.

78. The MasterFormat Defendants have sold the Infringing Goods under the CSI Trademark and the MASTERFORMAT Trademark, prejudicially affecting the Plaintiff, distributed and offered for sale the Infringing Goods in public, possessed the CSI Trademark and the MASTERFORMAT Trademark for the purposes of doing the acts set out above and imports into Canada the Infringing Goods for the purpose of doing the acts outlined above.

79. The MasterFormat Defendants have used, copied, produced and reproduced on the Corporate Defendants' websites or other platform the six-digit codes (or subsets of the six-digit codes) from, and the associated categories of the MasterFormat Work described above. Further, the Defendants infringed the MasterFormat Work together with the CSI Trademark and the MASTERFORMAT Trademark and independently from the CSI Trademark and the MASTERFORMAT Trademark. In addition, the MasterFormat Defendants have used, copied, produced and reproduced on the Corporate Defendant's website or other platform the Plaintiff's Divisions (Level 1) described above in association with the CSI Trademark and the MASTERFORMAT Trademark and have used, copied, produced and reproduced the MasterFormat Work Divisions (Level 1) independently from the CSI Trademark and the MASTERFORMAT Trademark. Examples of the infringement are included in **Schedule "G"**.

80. The Plaintiff is unable to give full particulars at this time of all of the wrongful acts and infringements of the MasterFormat Defendants but will seek relief in respect of all such activities.

81. The MasterFormat Defendants' activities have not been authorized or approved by the Plaintiff.

82. By reasons of the MasterFormat Defendants' acts described in this Claim, the MasterFormat Defendants have infringed the Plaintiff's copyright in the MasterFormat Work, contrary to Sections 27(1) and 27(2) of the *Copyright Act*.

83. The MasterFormat Defendants knew or had reasonable grounds to suspect that copyright subsisted in the Work, and knew, or should have known, that they were infringing the Plaintiff's copyright with the unauthorized reproduction, distribution and use of the MasterFormat Work.

b) The UniFormat Work

84. The UniFormat Defendants have infringed the Plaintiff's copyright in the UniFormat Work, by using, copying, producing, reproducing, creating a derivative work from, and distributing the UniFormat Work. The Infringing Goods are a reproduction of or a derivative work based on the UniFormat Work or a substantial part of the original UniFormat Work.

85. The UniFormat Defendants have sold the Infringing Goods under the UNIFORMAT Trademark, prejudicially affecting the Plaintiff, distributed and offered for sale the Infringing Goods in public, possessed UNIFORMAT Trademark for the purposes of doing the acts set out above and imports into Canada the Infringing Goods for the purpose of doing the acts outlined above.

86. The UniFormat Defendants have used, copied, produced and reproduced on the Corporate Defendants' websites or other platform the associated categories of the UniFormat Work described above. Further, the UniFormat Defendants infringed the UniFormat Work together with the UNIFORMAT Trademark, CSI Trademark and the MASTERFORMAT Trademark and independently from the CSI Trademark, UNIFORMAT Trademark and the MASTERFORMAT Trademark. Examples of the infringement are included in **Schedule "H".**

87. The Plaintiff is unable to give full particulars at this time of all of the wrongful acts and infringements of the UniFormat Defendants but will seek relief in respect of all such activities.

88. The UniFormat Defendants' activities have not been authorized or approved by the Plaintiff.

89. By reasons of the UniFormat Defendants' acts described in this Claim, the UniFormat Defendants have infringed the Plaintiff's copyright in the UniFormat Work, contrary to Sections 27(1) and 27(2) of the *Copyright Act*.

90. The UniFormat Defendants new or had reasonable grounds to suspect that copyright subsisted in the UniFormat Work, and knew, or should have known, that they were infringing the Plaintiff's copyright with the unauthorized reproduction, distribution and use of the UniFormat Work.

Joint and Severable Liability

91. The MasterFormat Defendants have acted in concert in the wrongful conduct set out in this Claim and therefore are joint tortfeasors. In addition, at all material times, the Defendants Juste and Temisan acted as the controlling minds of Bibliotech and JMF, and personally, deliberately, wilfully and knowingly caused, directed and authorized the wrongful conduct set out in this Claim for the purposes of their personal gain.

92. The Defendants Juste and Temisan used Bibliotech and JMF as their alter-ego or agents or both in carrying out some or all of their unlawful activities described in this Claim, including by intentionally infringing the Plaintiff's Intellectual Properties.

93. In the alternative, Bibliotech and JMF were at all material times the employers of Juste and Temisan. Juste and Temisan carried out the unlawful activities described in this Claim in the course of their employment or within the scope of their employment with Bibliotech and JMF. Bibliotech and JMF are therefore vicariously liable for its employees' unlawful actions described in this Claim.

94. Accordingly, the MasterFormat Defendants are jointly and severally liable for the unlawful actions described in this Claim.

Punitive Damages

95. The conduct of the MasterFormat Defendants in knowingly and wilfully infringing the Plaintiff's Intellectual Properties or authorizing or directing such activities, justifies a significant award of punitive or exemplary damages. The MasterFormat Defendants knew and had reasonable grounds to know or strongly suspect that copyright subsisted in the Work, because among other things, the publicly-accessible copyright registration described above, CSI's clear display of copyright notices on the Work, the nature of the MasterFormat Defendants' business in the construction industry, and the manner in which the Defendants' infringed the MasterFormat Work and UniFormat Work outlined in Schedules "A" and "B".

96. The activities of the MasterFormat Defendants have and will continue to cause the Plaintiff irreparable harm. In addition, the Plaintiff has suffered and continues to suffer damages by reason of the MasterFormat Defendants' unlawful conduct detailed in this Claim.

97. The MasterFormat Defendants continue to infringe the Plaintiff's Intellectual Properties despite the Plaintiff's repeated notice to and attempts to resolve the matter with the MasterFormat Defendants. Without relief from this Honourable Court, the MasterFormat Defendants are likely to continue these infringing activities

98. Full particulars of the MasterFormat Defendants' activities are not known to the Plaintiff, however, the Plaintiff seeks relief in relation to all infringing or wrongful acts of the MasterFormat Defendants.

99. The Plaintiff will not know the precise extent of the damages it has suffered or the profits the MasterFormat Defendants have unlawfully earned without full discovery and a trial or reference in respect thereof.

100. This is not a simplified action as the claim is not exclusively for monetary relief in an amount not exceeding $50,000, exclusive of interest and costs.

101. The Plaintiff requests that this action be tried in Toronto, Ontario.

DATED at Toronto, Ontario, this 18th day of September, 2024.

AMENDED at Toronto Ontario, this 31st day of December, 2024.

FURTHER AMENDED at Toronto Ontario, this 26th day of January 2026.

FURTHER AMENDED at Toronto, Ontario, this 17th day of July, 2026.



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Solicitors for the Plaintiff

Schedule “A”

Innovation, Sciences et Développement économique Canada
Office de la propriété intellectuelle du Canada

Innovation, Science and Economic Development Canada
Canadian Intellectual Property Office

Droit d'auteur / Copyright

CERTIFICATION

CERTIFICATION

Le (la) sousignee certifie par la présente que les documents ci-joints sont des copies authentiques de ce qui suit:

The undersigned hereby certifies that the attached documents are true copies of:

Certificat d'enregistrement du droit d'auteur no. 1213241 tel qu'enregistré le 17 mai, 2024.

Certificate of registration of copyright no. 1213241 as registered on May 17,2024.

Émis / Issued
7 nov/Nov 2024

mbeaudry

Agent certificateur
Certifying officer

Canada

Innovation, Sciences et Développement économique Canada
Office de la propriété intellectuelle du Canada

Innovation, Science and Economic Development Canada
Canadian Intellectual Property Office

Droit d'auteur / Copyright

CERTIFICAT D'ENREGISTREMENT

CERTIFICATE OF REGISTRATION

1213241

Numéro d'enregistrement
Registration number

Ce certificat d'enregistrement est émis conformément aux articles 49 et 53 de la Loi sur le droit d'auteur. Le droit d'auteur sur l'oeuvre a été enregistré à la date d'enregistrement et selon les détails indiqués dans les présentes.

This Certificate of Registration is issued pursuant to sections 49 and 53 of the Copyright Act. The copyright in the work was registered on the date of registration and as detailed herein.

Membre du personnel du bureau du commissaire aux brevets
Officer of the Office of the Commissioner of Patents

Date d'enregistrement /
Date of registration
17 MAI / MAY 2024

Titre /
Title
MASTERFORMAT

Catégorie /
Category
LITTÉRAIRE / LITERARY

Titulaire(s) /
Owner(s)
THE CONSTRUCTION SPECIFICATIONS INSTITUTE, INC.
123 N PITT ST STE 450
ALEXANDRIA, VIRGINIA
UNITED STATES OF AMERICA, 22314

Auteur(s) /
Author(s)
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DAVID WATSON

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KEVIN M. O'BEIRNE

KEITH A. ROBINSON

GREG CETON

Première publication /

Canada

Innovation, Sciences et Développement économique Canada
Office de la propriété intellectuelle du Canada

Innovation, Science and Economic Development Canada
Canadian Intellectual Property Office

Droit d'auteur / Copyright

CERTIFICAT D'ENREGISTREMENT

CERTIFICATE OF REGISTRATION

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Date d'émission /
Date of issuance
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Canada

Schedule “F”

Innovation, Sciences et Développement économique Canada
Office de la propriété intellectuelle du Canada

Innovation, Science and Economic Development Canada
Canadian Intellectual Property Office

Droit d'auteur / Copyright

CERTIFICAT D'ENREGISTREMENT

CERTIFICATE OF REGISTRATION

1237148

Numéro d'enregistrement
Registration number

Ce certificat d'enregistrement est émis conformément aux articles 49 et 53 de la Loi sur le droit d'auteur. Le droit d'auteur sur l'oeuvre a été enregistré à la date d'enregistrement et selon les détails indiqués dans les présentes.

This Certificate of Registration is issued pursuant to sections 49 and 53 of the Copyright Act. The copyright in the work was registered on the date of registration and as detailed herein.

Membre du personnel du bureau du commissaire aux brevets
Officer of the Office of the Commissioner of Patents

Date d'enregistrement /
Date of registration
16 SEPT / SEP 2025

Titre /
Title
UNIFORMAT

Catégorie /
Category
LITTÉRAIRE / LITERARY

Titulaire(s) /
Owner(s)
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CHRIS ROBUCK

Canada

Innovation, Sciences et Développement économique Canada
Office de la propriété intellectuelle du Canada

Innovation, Science and Economic Development Canada
Canadian Intellectual Property Office

Droit d'auteur / Copyright

CERTIFICAT D'ENREGISTREMENT

CERTIFICATE OF REGISTRATION

1237148

Numéro d'enregistrement
Registration number

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RICHARD STONE

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Canada

Schedule “G”

Schedule “D”

Manufacturer Library

Welcome to Bibliotech Canada’s largest database of construction products and suppliers. Discover manufacturers by simply entering a name or type of product you’re searching for. You can search our platform using the CSC/CSI MasterFormat Divisions.

CSC/CSI Divisions

00 01 02 03 04 05 06 07 08 09 10 11 12 13 14 20 21 22 23

24 25 26 27 28 31 32 33 34 35 40 41 42 43 44 45

01. Dashboard 02. Manufacturer Library 03. Product Discovery

Manufacturer Library

This is the Manufacturer Library. Think of it as a search engine for building manufacturers. You can search by using the MasterFormat filter or by simply typing a manufacturer's name or product, e.g. you can type "ACME", "rubber flooring", "roofing" etc.

3M Science.

Applied to Life.

3M Canada Company

MASTERFORMAT No.

- **Air Barriers**

  07 27 00

- **Glazing**

  08 80 00

- **Glazing Surface Films**

  08 87 00

Manufacturer Library

Search

Scopes

A. Sitework and Preparation | B. Building Core and Shell | C. Interiors: Finishes and Equipment | D. Building Services and Systems | E. Landscaping and Other Site Improvements | F. Demolition and Remediation Work | G. Integrated and Domain-Specific Components | H. Heritage and Preservation Work

02 03 04 05 06 07 08 09 10 11 12 13 14 21 22 23 26 28 31 32 33

Maple Filters

Canadian Manufacturing | Canadian-Owned | Representation in Canada

Featured

Blok-Lok
BLOK-LOK – We've got you covered. From structural reinforcement and moisture...

Manufacturing plant in Woodbridge (ON)

04 07

Featured

Norbec Architectural Inc.
Norbec is a North American Manufacturer of Insulated Metal Panels with a driving...

Mfg plants in Boucherville (QC), Saint-Hyacinthe (QC), and...

07

Featured

Somfy Systems
For over 50 years, Somfy has been pioneering innovative motorization and automated...

Office & Warehouse in Mississauga (ON)

12 23

3Form
3Form is a manufacturer specialized in producing architectural decorative resin..

No physical manufacturing in Canada; products are...

06 09

3M Canada Company
3M Canada Company aims to stimulate progress and inspire people and communities...

Major manufacturing plants in London (ON), Brockville (ON),...

07 08

9Wood
9Wood is a company that specializes in the design and manufacturing of custom...

No Canadian manufacturing; sales handled by independent...

06 09

475 High Performance Buildi...
475 High Performance Building Supply is a Brooklyn-based company founded in...

Warehouses in Delta (BC) and Markham (ON)

07

A & J Washroom Accessories Inc.
A & J Washroom Accessories Inc. is a company that offers a range of products including...

Headquarters and manufacturing in New Windsor (NY); additional..

10

AAcer Flooring
Aacer Flooring is a manufacturer that specializes in hardwood flooring. They...

Manufacturing operations located in Crandon (WI) and...

09

Abacus Sports Installations Ltd.
Abacus Sports Installations Ltd. is a company that provides sports flooring...

Primary operations, including manufacturing of Padenpor and..

09 10 13 32

Abatron Inc.
Abatron Inc. is a company that specializes in the production and distribution of building a...

Manufacturing operations located in Kenosha, WI (USA). ...

03 04 05 06 09

Abet Corporation
Abet Corporation is a company that offers a range of laminate surfacing solutions for floors,..

Distribution warehouse and sales office in Mississauga (ON)

06 07

ABT Inc.
ABT Inc. is a company that specializes in the manufacturing of surface...

Manufacturing centered in Troutman, NC (USA); Canadian..

33

Accent Architectural (Synergi LLC)
Accent Architectural is a company that designs, fabricates, and installs...

Former manufacturing plant in Baie-D'Urfé (QC) closed;...

05

Access Tile
Access Tile is a company that offers a range of truncated domes.

Manufacturing operations located in Buffalo (NY); Canadi...

09 32

AccessSMT
AccessSMT represents Shanahan's Limited Partnership and McGregor &..

Headquartered in Surrey (BC) with distribution branches in...

08 10 28

Accord Technology
Accord Technology, a company specializing in push-fit stop valve.

Primary manufacturing plant in East Wenatchee, WA (USA);...

22

Accu-Plane Enterprises Inc
Accu-Plane Enterprises Inc specializes in the production of tapered roof insulation...

Manufacturing plant in Toronto (ON)

07

Accura Glass Bending Inc.
Accura Glass Bending Inc. is a company that specializes in providing custom architectur...

Manufacturing facility in Concord (ON)

08

ACGI - Architectural Components Group..
ACGI, or Architectural Components Group Inc., is a company specializing in the...

Primary manufacturing facility located in Marshfield, Missouri...

09

ACM Chemistries
ACM Chemistries is a company that specializes in chemical admixtures for the landscape..

Headquarters and manufacturing in Norcross (GA); 'satellite...

07

ACO Drainage Systems
ACO Drainage Systems is a company that specializes in the manufacturing of various..

Sales and distribution center in Oakville (ON); Sales office in...

33

Acorn Engineering
Acorn Engineering Company offers stainless steel hand washing products, plumbing..

No Canadian manufacturing; represented by Morris/Lee Ltd i...

10

Acoustex Specialty Products
Acoustex Specialty Products is a company that specializes in providing acoustic solutions...

Mfg plant in Fort Erie (ON); Sales office in Calgary (AB)

09

Acousti-Guard WILREP
Acousti-Guard WILREP is a company that specializes in supplying acoustic...

Manufacturing and distribution facility in Mississauga (ON)

09 13

AcoustiTech
AcoustiTech is a company that specializes in providing soundproofing and thermo-...

Manufacturing plant in Saint-Lambert-de-Lauzon (QC)

09 13

Acudor Products Inc.
Acudor Products Inc. specializes in providing service access solutions for...

Manufacturing plant in Pickering (ON) shared with parent Nelson..

08

ADEX Systems Inc.
Adex Architectural Coatings (Acrylon) is a manufacturer specializing in architectural...

Manufacturing plant and HQ in Montreal (QC); distribution...

07 09

Advanced Architectural...
The company Advanced Architectural Products (Smart ci) offers the SMARTciTM...

All manufacturing conducted in Hamilton (Michigan, USA);...

05 07

Advanced Chemical Technologies, Inc.
Advanced Chemical Technologies, Inc. specializes in manufacturing and...

Headquarters and manufacturing operations located in Oklahoma..

07

Advanced Floor Products Inc. /...
Advanced Floor Products Inc.has a system for concrete polishing system, is utilized f...

Manufacturing in Springville, Utah (USA); products are...

03

Advanced Glazings Ltd (Solera)
Manufacturing plant and HQ in Sydney (NS)

08

Advanced Precast Inc.
Advanced Precast Inc. is a company that specializes in the manufacturing of...

Manufacturing plant in Bolton (ON)

03

ADVANTAGE TACTILE SYSTEMS
Advantage Tactile Systems is a company that provides metal detectable warning tile...

Distribution centers in Mississauga (ON) and Coquitla...

09 32

AeroBarrier Canada
AeroBarrier Canada is a company that provides air sealing services to home...

Sales office in Waterloo (ON); no physical manufacturing in...

07

AGM Industries Inc. (JORDHAL)
AGM Industries Inc. (JORDHAL) is a manufacturer of Capacitor Discharge (CD)..

Mfg/Distribution facilities in Hamilton (ON) and Calgary (AB)

07

Agway Metals Inc.
Agway Metals Inc. is a company that provides solutions of product lines for..

Mfg plants in Brampton (ON), Oakville (ON), Exeter (ON), and..

05 07

Airfield Systems
Airfield Systems is a company that offers a range of products and services related to...

Headquarters and operations based in Oklahoma City, OK; no..

32

Airfoam Industries Ltd.
Airfoam Industries Ltd. is a company that specializes in the production of building...

Mfg plants in Surrey (BC) and Paris (ON)

07

Airolite
Airolite is a company that specializes in providing architectural louvers, custom..

No Canadian manufacturing; products designed and...

08 10

Akemi North America
Akemi North America is a company in the manufacturing and distribution industry,...

Manufacturing in Atlanta (USA) and Germany; no Canadian...

04 07 09

Akustus
Akustus is a company that specializes in designing and manufacturing various...

Manufacturing/Processing facility in Vancouver (BC)

09

AkzoNobel Coatings Limited
AkzoNobel Coatings Limited specializes in the production of paints and performance...

Manufacturing plants in Toronto (ON) and Warwick (QC);...

05 07 09

Albi Protective Coatings
Albi Protective Coatings specializes in the production of fireproofing intumescent...

No Canadian manufacturing; products are manufactured in t...

07

Alcotex
Company Alcotex specializes in the production and distribution of Aluminum...

Distribution center and HQ in London (ON)

07

Alfab, Inc
Alfab, Inc is a company that specializes in custom metal fabrication and offer fabricat...

Primary manufacturing facility located in Enterprise, Alabama...

05 08

All Weather Insulated Panels (AWIP)
All Weather Insulated Panels (AWIP) is a company that specializes in the design and..

Manufacturing facilities located in Vacaville (CA), Little Rock (AR),..

07

Alleguard
Alleguard is a North American manufacturer specializing in foam-based products for...

Manufacturing plants in Toronto (ON), Scarborough (ON), and...

03 07 23

Load more

Would you like to list your company?

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3M Science. Applied to Life.

Manufacturer	**3M Canada Company**
Website	www.3mcanada.ca
Scope	B. Building Core and Shell , C. Interiors: Finishes and Equipment
Classification	Air Control Membranes Exterior Openings Glass Interior Openings Joint and Gap Filling Vapour Control Membranes
Keywords:	Air Barriers Firestopping Glazing Glazing Surface Films Weather Barriers
Company Description	3M Canada Company aims to stimulate progress and inspire people and communities globally.
Canadian Supply Chain Insights	Major manufacturing plants in London (ON), Brockville (ON), Perth (ON), and Morden (MB)
Data Source URL:	https://lobbycanada.gc.ca/app/secure/ocl/lrs/do/vwRg?regId=505688&cno=15128

[redacted]

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Sign up or sign in to see this company's information.

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Schedule “H”



Why is Jm|F the right firm for you?

Jm|F Technical is one of Toronto's leading full-service, bilingual (English/French) specifications writing firms.

Founded in 2012, our company has established itself as a cutting-edge innovator in the industry, dedicated to high-performance, ecologically and socially responsible construction.

With more than 300 projects under our belt, our track record in construction specification writing speaks for itself. We are proud to be a trusted partner of some of the world's largest architects, interior designers, and government agencies.

At Jm|F Technical, we put our clients first. We safeguard your designs by including clear, attainable, and enforceable requirements in project specifications.

Request a fee proposal

About us



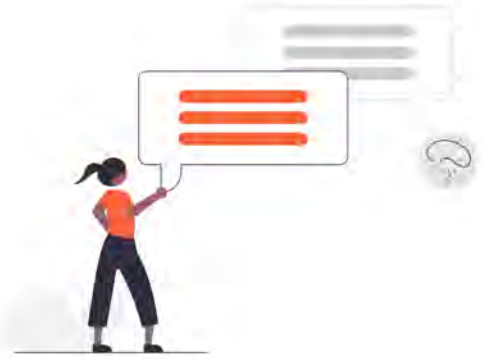
Technically sound specifications

Success begins with a firm grasp of construction techniques and procedures. Jm|F Technical prides itself on the exceptionally high calibre of its team, led by our technical director, Juste Fanou. Juste is a Building Science Specialist, BCIN, a WELL AP, is CSA Z317.13- certified, and holds a plethora of other credentials. Continuous education and professional development represent a core tenet of our company; this means our people always have a finger on the pulse of industry changes, ensuring your specs remain current.

Familiar with all the "formats"

We are not constrained by "formats". Do you want to work with the CSI/CSC MasterFormat? Sure, we can do it. Uniformat? Not a problem! NMS? We have got you covered! What about the NBS (CAWS/Uniclass)? Yes, once again! Do you have your own set of masters? We are happy to use and enrich them! We will work with you in the format that you are most comfortable with because we are confident in our technical expertise.





Masters in English and French

As a proudly Canadian firm, we have developed the ability to work in either of the country's official languages (French or English). Pairing our talent in writing and translation with cutting-edge technology, we ensure your design intent is respected and conveyed no matter the language.

Quality control every step of the way

We take pride in our processes and the way we do business. Rather than simply drafting specifications, we rely on the data extracted from these documents to provide insight into projects for stakeholders. Our techniques are well-established and tested and have boosted client satisfaction.





We will get your projects off to a green and healthy start.

We're environmentally and socially responsible specifications writers. We work with a set of "green" master specifications that provide best-in-class solutions in terms of human and environmental health. We prioritize products with Environmental Product Declarations (EPDs), Health Product Declarations (HPDs), Low-VOC/Low-Emissions certifications, and low-embodied carbon. By doing this, we contribute to industry transparency and the transition to a net-zero future, all while ensuring that your projects' sustainability targets are met.

Services

We place technology at the heart of our business operations. Through the use of a range of software solutions, from macro scripts to product databases and artificial intelligence, we have established a reputation in the industry as an agile and trustworthy firm capable of taking on large projects while remaining cost-competitive. We have well-defined workflows supported by checklists, automation, and other technology to ensure that our clients receive high-quality service at each stage of the project delivery process.

Our services include, but are not limited to:

Outline Specifications

Get your projects off to a good start and eliminate any potential for error or mishap. We work with you from the beginning to ensure that your project's requirements are well-defined and accurately costed.

Project Specifications

Prevent problems and costly delays with great construction specifications. Let's work together to ensure that your construction documents are clear, concise, and compliant with relevant codes and standards.

Output Specifications (P3)

We have the experience and know-how to develop specifications for P3 projects. Whether we're on the compliance team or the project delivery team, our priority is to make sure the specifications aid in achieving the Owner's vision.

Office Master Specifications

Our team of experts can develop specifications tailored to your project typologies, or office practices, that will provide you with the guidance you need to deliver quality projects on time and on budget.

Manufacturer Guide Specifications

Looking to get a competitive edge? We can develop manufacturer guide specifications for your products that will set you apart and help you win more bids.

Technical Translation

Our team is bilingual and can develop specifications in both French and English. This way, you can be sure that your project's requirements are well-defined no matter what language they're written in.

Let us help you deliver better specs

Introducing Spec Narratives™

The outline specification is one of the most critical documents in any project. It establishes the project's fundamental expectations and can serve as a basis for evaluating subsequent decisions. Unfortunately, it is frequently overlooked or rushed.

Our forward-thinking, innovative approach to specifications, has earned us a reputation as a company that is keen to share its tools with the broader industry to inspire progress and transform the sector.

Our most recent innovation is our complimentary outline specifications tool, an easy-to-use app that allows architects and designers to quickly create outline specifications with just a few simple clicks. Use the link below to try the tool for yourself!

Try Spec Narratives™

A thriving client base that speaks for itself

Jm|F Technical is proud to work with a diverse range of fantastic clients, both large and small, in Canada and beyond. Over the past 10 years, projects have spanned from large, complex healthcare projects to small office renovations. We are incredibly grateful for the continued trust these companies place in us.

Adjaye Associates Perkins&Will A|49 B+H

A few projects we are really proud of

Here are some projects we have had the pleasure to collaborate on.



481 University (the United Building)

Commercial

Toronto, Ontario

Architect:

B+H Architects

Owner

Davpart



Cornerbrook Hospital

Healthcare

Corner Brook, Newfoundland

Architect:

B+H Architects, Parkin Architects Limited (in Joint Venture)

Owner

Government of N.L.



Library and Archives Canada - GATINEAU 2

Institutional

Gatineau, Quebec

Architect:

B+H Architects Corp.

Owner

Government of Canada



Royal Inland Hospital Patient Care Tower

Healthcare

Kamloops, British Columbia

Architect:

Parkin Architects Limited

Owner

Interior Health



East Bayfront Community Centre

Recreational

Toronto, Ontario

Architect:

Perkins & Will

Owner

City of Toronto



Georgina Multi-Use Recreation Complex

Recreational

,

Architect:

Perkins & Will Canada

Owner

Town of Georgina

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What people say

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guage translations.
panies in the past
to get it right.
offers this service,
nd I am glad we
accurate, making
slations easily
and English. Juste
pricing and he
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We contracted JMF services earlier this year for both CAD details for new literature and for translation services to our existing guide specs. We were very pleased with the level of service we received and the product delivered. Not only did JMF deliver but also went above the call of duty to update formatting errors. We will be contracting JMF Services for future work and recommend to others the same.

Iain Stuart, Canadian Specifications Manager

We had the great p
Juste Fanou, Owne
Documentation Sol
translate several te
documents in Frenc
manufacturer of Ar
immersed in techni
fluency in French, E
architectural techn
perfect mix of skills

Luc Aube, Executiv

Communicating your vision

We partner with design-oriented professionals who appreciate the importance of specifications to support, protect and enforce their project objectives. From initial outline specifications to final bid-ready documentation, we work hand-in-hand with architects and their subconsultants over the project lifecycle to ensure project manuals are complete, accurate, and coordinated.

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